City of Yreka

SB1 LSR-RMRA 26/27 FY

RELISTED: Rubberized Chipseal Project

UPDATED Prospective Streets for Improvement List:

***The following list is tentative; specific locations to be improved with SB1 LSR-RMRA funding have yet to be finalized. All locations will be determined taking time, street conditions and available funding into account.**

UPDATE FOR FY 2026/27

Sections of:

- Yama St.
- Summit Ct.
- Hillcrest Dr.
- Park Pl.
- Prospect Ln.
- Oak St.
- Maple St.
- Northview Circle
- Discovery St.
- Payne Ln.
- W. Oberlin Rd.
- Kegler
- 4H Way
- Sierra Vista Dr.
- Sierra Vista Way
- E. Center St.
- Executive Ct.

RESOLUTION NUMBER 2026-21

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF YREKA, STATE OF CALFIORNIA, UPDATING THE SIGNATORY OF THE "CALIFORNIA CLIMATE INVESTMENTS WILDFIRE PREVENTION GRANTS PROGRAM"

WHEREAS, the Governor of the State of California in cooperation with the California State Legislature has enacted State of California Climate Investment, which provides funds to the State of California and its political subdivisions for fire prevention programs; and

WHEREAS, the State Department of Forestry and Fire Protection (CAL FIRE) has been delegated the responsibility for the administration of the program within the State, setting up necessary procedures governing application by local agencies, non-profit organizations, and others under the program, and

WHEREAS, the applicant will enter into an agreement with the State of California to carry out Yreka City Air Curtain Resource for regional agency, private, commercial waste fuel disposal and Yreka I5 Corridor Brush and Grassland fuel reduction project;

NOW, THEREFORE, BE IT RESOLVED that the City Council of the City of Yreka:

1. Approved the filing of an application for "California Climate Investments Wildfire Prevention Grants Program"; and

2. Certifies that said applicant has or will have sufficient funds to operate and maintain the project; and

3. Certifies that funds under the jurisdiction of City Council of the City of Yreka are available to begin the project.

4. Certifies that said applicant will expend grant funds prior to January 15, 2029, where all grant activities must be completed by March 15, 2029.

5. Appoints Will Ibershof, City Manager, or a designee, to conduct all negotiations, execute and submit all documents including, but not limited to applications, agreements, amendments, payment requests and so on, which may be necessary for the completion of the aforementioned project.

The foregoing resolution was approved and adopted on the 16th day of June 2026 by the following vote:

AYES:
NOES:
ABSENT:

_____
Colleen Baker, Mayor

I, Cyndy Prohaska of the City of Yreka, witness my hand or the seal of the City of Yreka on the 16th day of June 2026.

_____
Cyndy Prohaska, City Clerk

CITY OF YREKA
CITY COUNCIL AGENDA MEMORANDUM

To: Yreka City Council

From: John Elsnab, Human Resources Director

Agenda title: Discussion/Possible Action – Approve Resolution 2026-22 of the City Council of the City of Yreka Proposing an Increase of the Uniform Transient Occupancy Tax (Hotel Tax) of the City of Yreka to be Submitted to the Voters for Approval.

Meeting date: June 16, 2026

Discussion

As the City continues to provide essential services to the community, increased revenue streams are needed to maintain essential services, including public safety, parks and recreation programming, community events, and local economic development. Many of these services are funded through the General Fund, and have limited budget in order to enhance or maintain services for the community.

One option for increasing revenue is to consider an increase to the City's Transient Occupancy Tax (TOT) for hotels and short-term rentals. The City's current TOT rate is ten percent (10%), as established under Section 3.12.030 of the Yreka Municipal Code, and has not been increased since approximately 2006. Increasing the TOT would help support City services and could also assist with initiatives for funding city programs that are underfunded such as parks and recreation programing, community events, and developing a chamber of commerce to stimulate economic development.

City staff estimate that increasing the TOT rate from ten percent (10%) to twelve percent (12%) would increase General Fund revenues by $245,000 annually. The TOT primarily impacts out-of-town visitors who stay in the City for less than thirty days and does not typically directly tax Yreka residents. Additionally, the proposed two percent (2%) increase would align the City of Yreka's TOT rate with the County of Siskiyou, which currently has a twelve percent (12%) TOT rate.

The proposed TOT increase was discussed at the March 25, 2026, Finance Committee meeting as part of a broader budget discussion. The Finance Committee agreed that the additional revenue would support essential General Fund services and help fund local projects and initiatives. The Committee unanimously supported moving forward with a proposal to increase the TOT rate to twelve percent (12%) and found the two percent (2%) increase reasonable, particularly given its alignment with other local agencies in Siskiyou County.

Local Agencies	TOT Rate
County of Siskiyou	12%
Mt. Shasta	12%
Dunsmuir	12%
Weed	10% +2% TBID

It is also recommended that Chapter 3.12 be amended to allow non-rate raising amendments and clarifications to the code by the City Council. This would also allow for the City Council to pause collection of the tax from time to time and resume collection without having to go to the voters to amend the code for such actions.

Fiscal Impact:

An increase in the Transient Occupancy Tax from ten percent (10%) to twelve percent (12%) is estimated to increase annual City revenues by approximately $245,000.

Recommendation:

Approve Resolution 2026-22 of the City Council of the City of Yreka proposing, on its own motion, the submission to the Electors of the City of Yreka at the November General Election, a Ballot Measure Proposal to Amend Sections 3.12.030 and add section 3.12.140 of the City of Yreka Municipal Code to Increase the Uniform Transient Occupancy Tax (Hotel Tax) from Ten Percent (10%) to Twelve Percent (12%)

Approved by: _____
John Elsnab, Human Resources Director

Attachment:

- [Draft] Resolution

RESOLUTION NO. 2026-22

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF YREKA PROPOSING, ON ITS OWN MOTION, THE SUBMISSION TO THE ELECTORS OF THE CITY OF YREKA AT THE NOVEMBER GENERAL ELECTION, A BALLOT MEASURE PROPOSAL TO AMEND SECTIONS 3.12.030 AND ADD SECTION 3.12.140 OF THE CITY OF YREKA MUNICIPAL CODE TO INCREASE THE UNIFORM TRANSIENT OCCUPANCY TAX (HOTEL TAX) FROM TEN PERCENT (10%) TO TWELVE PERCENT (12%)

WHEREAS, the City Council desires to submit to the electors of the City of Yreka at the General Election on November 3, 2026, a ballot measure proposal to amend Section 3.12.030 and to add section 3.12.140 of Chapter 3.12 of Title 3 of the Yreka Municipal Code to increase the amount of the Transient Occupancy (Hotel) Tax from ten percent (10%) to twelve percent (12%);

BE IT RESOLVED by the City Council of the City of Yreka as follows:

Section 1. This Resolution is adopted pursuant to Government Code Section 53720, et seq.

Section 2. This Resolution may be cited as the "Uniform Transient Occupancy Tax Resolution of 2024."

Section 3. California Revenue and Taxation Code Section 7280 provides that cities may levy a tax on the privilege of occupying a hotel room or other lodging for not more than 30 days, called a "transient occupancy tax," commonly known as a "hotel tax.". Section 3.12.030 of the City of Yreka Municipal Code establishes the City's hotel tax at ten percent (10%). It is proposed that a general tax measure to increase the hotel tax to twelve percent (12%) be submitted to the voters of the City of Yreka at the election on Tuesday, November 3, 2026. Such action is taken pursuant to California Constitution Article XIIIC, §2(b) which requires that any general tax be passed by a two-thirds vote of the legislative body, and by a majority of the voters voting in an election on the tax which is consolidated with a regularly scheduled general election of members of the governing body.

The Yreka City Council does hereby find that an increase in an existing general tax, specifically the hotel tax, by two percent (2%) and which will be collected by the operators of hotels as provided Chapter 3.12.030 of the City of Yreka Municipal Code, is in the best interests of the City of Yreka.

Section 4. The full text of the measure and the actual language of the proposed Ordinance is attached to this Resolution as Exhibit A and incorporated by reference in this Resolution.

The ballot measure will be placed on the ballot for the November 3, 2026, election in the following form:

To provide funding (all funds used for local services) for infrastructure and general City services, including, but not limited to, public safety, park and recreation programming, community events, and local economic development, shall the City increase the transient occupancy tax (hotel tax) rate from 10% to 12% on July 1, 2027, with an estimated increase of $245,000.00 generated annually from the resulting tax and will remain in effect until repealed or amended?	YES	
	NO	

Section 5. The City Council finds and declares that this hotel tax is a general tax, for general governmental purposes, and not a special or ad valorem tax. This general hotel tax, which is deposited into the City's General Fund, pays for essential City services that benefit both residents and visitors. These services may include, but are not limited to fire protection, law enforcement, emergency response and preparedness services, facilities and equipment maintenance, and other general City services.

Section 6. This general hotel tax, if confirmed by the voters, shall be collected as provided in the Chapter of the City of Yreka Municipal Code and is estimated to generate an additional $245,000.00 annually.

Section 7. The proposed general hotel tax shall be submitted to the voters of the City of Yreka at the election to be included and consolidated with the Siskiyou County Special election held on November 3, 2026. Notice of the time and place of holding the election is given and the County Clerk is requested to give further or additional notice of the election, in time, form, and manner as required by law.

Section 8. This Resolution, being for the enactment and imposition of a general hotel tax, shall be submitted to a vote of the qualified voters at the election held on November 3, 2026. The hotel tax shall become valid and binding if a majority of the voters voting thereon vote in its favor at said election and shall become permanent, unless repealed or amended, and will be effective on July 1, 2027.

Section 9. The City Council hereby directs the City Clerk to take all actions necessary to submit the measure to the Registrar of Voters for placement on the November 3, 2026 ballot and facilitate the Special Municipal Election in the time frame specified herein and comply with provisions of the Elections Code of the State of California, City Charter, Ordinances, Resolutions and Policies regarding the conduct of the Special Municipal Election.

Section 10. The City Council hereby directs the City Clerk to: (a) pursuant to Section 12111 of the California Elections Code, cause a synopsis of the proposed measure to be published at least one time not later than one week before the election in a newspaper of general circulation within the City of Yreka; (b) cause the statement set forth in Section 9280 of the California Elections Code regarding notice of availability of a copy of the measure to be printed in the impartial analysis to be prepared by the City Attorney; and (c) do all other things required by law to submit the specified measure above to the electors of the City of Yreka at the general election,

including causing the full text of the proposed measure to be made available in the Office of the City Clerk at no cost and posted on the City Clerk's website.

Section 11. Pursuant to Sections 9282 and 9285 of the California Elections Code, the City Council hereby approves the submittal of direct arguments for and against the ballot measure, if any, and authorizes James Clair and Paul McCoy to author and submit a ballot measure argument in favor of the ballot measure, and approves the submittal of rebuttal arguments in response to arguments for and against the ballot measure and authorizes Paul McCoy to author and submit a rebuttal, if any, on behalf of the City Council.

Section 12. The City Council hereby directs the City Clerk to transmit a copy of the measure qualifying for placement on the ballot to the City Attorney for preparation of an impartial analysis in accordance with Section 9280 of the California Elections Code.

Section 13. If any section, subsection, sentence, clause or phrase of this Resolution is for any reason held to be invalid, unconstitutional, or otherwise unlawful, by the decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Resolution, the application thereof, and the general taxes imposed shall not be effected thereby but shall remain in full force and effect, it being the intention of the voters to adopt each and every section, subsection, part, clause, sentence, or phrase, regardless of whether any other section, subsection, part, clause, sentence, or phrase or the application thereof is held to be invalid or unconstitutional. The Yreka City Council hereby declares that it would have passed this Resolution and each section, subsection, sentence, clause, or phrase thereof irrespective of the fact that one or more of the sections, subsections, sentences, clauses, or phrases be declared invalid, unconstitutional, or unlawful.

IT IS FURTHER RESOLVED that the election be included and consolidated with the election on November 3, 2026.

PASSED, APPROVED, AND ADOPTED at a regularly scheduled meeting of the Yreka City Council, this 16th day of June 2026, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

CITY OF YREKA

_____

Colleen Baker, Mayor

ATTEST:

_____

Cyndy Prohaska, City Clerk

EXHIBIT A

BE IT ORDAINED BY THE PEOPLE OF THE CITY OF YREKA:

SECTION 1. Section 3.12.030 of Chapter 3.12 of Title 3 of the Yreka Municipal Code is hereby amended to read as follows:

3.12.030 - Tax imposed.

For the privilege of occupancy in any hotel, campground or recreational vehicle park, each transient is subject to and shall pay a tax in the amount of twelve ~~ten~~ percent of the rent charged by the operator. The tax constitutes a debt owed by the transient to the city, which is extinguished only by payment to the operator or to the city. The transient shall pay the tax to the operator at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. The unpaid tax shall be due upon the transient ceasing to occupy space in the hotel, campground or recreational vehicle park. If for any reason the tax due is not paid to the operator, the city clerk shall require that such tax be paid directly to the city clerk.

SECTION 2. A new section is added to Chapter 3.12 of Title 3 of the Yreka Municipal Code, to be numbered, entitled, and to read as follows:

3.12.140 Amendment

Chapter XIIIC of the California Constitution requires voter approval for any amendment that would increase the rate of any tax levied under this Chapter 3.12 of the Yreka Municipal Code. The People of the City of Yreka affirm that the City Council may amend this Chapter to take the following actions because these actions shall not be an increase of the rate of a tax subject to voter approval:

A. The restoration of the rate of the tax to a rate that is no higher than that set by this Chapter, if the City Council has acted to reduce the rate of the tax;

B. An action that interprets or clarifies the methodology of the tax, or any definition applicable to the tax, so long as interpretation or clarification (even if contrary to some prior interpretation or clarification) is not inconsistent with the language of this Chapter;

C. The establishment of a class of person that is exempt or excepted from the tax or the discontinuation of any such exemption or exception (other than the discontinuation of an exemption or exception specifically set forth in this Chapter); or

D. The collection of the tax imposed by this Chapter, even if the City had, for some period of time, failed to collect the tax.

SECTION 3. This Ordinance shall be considered adopted upon the date that the City Council

certifies the results of the election, and shall go into effect on July 1, 2027.

SECTION 4. Should any provision of this Ordinance or its application to any person or circumstance be determined by a court of competent jurisdiction to be unlawful, unenforceable or otherwise void, that determination shall have no effect on any other provision of this Ordinance or the application of this Ordinance to any other person or circumstance and, to that end, the provisions hereof are severable.